

PURCHASE AND SALE AGREEMENT

This Purchase and Sale Agreement (the "Agreement") is made effective as of _____ (the "Effective Date") by and between:

Seller: _____, with a mailing address of _____ ("Seller").

Buyer: _____, with a mailing address of _____ ("Buyer").

1. Property

Seller agrees to sell and Buyer agrees to buy the real property commonly known as _____, together with all improvements, fixtures, mineral, water, and air rights, and appurtenances thereon (collectively, the "Property"). A full legal description is attached as *Exhibit A*.

2. Purchase Price & Consideration

2.1 Purchase Price. The total purchase price is \$_____ (the "Purchase Price").

2.2 Earnest Money. Within _____ business days after the Effective Date, Buyer shall deposit \$_____ (the "Earnest Money Deposit") with _____ (the "Escrow Holder"). The Earnest Money is refundable except as provided herein.

2.3 Financing. Buyer will fund the Purchase Price via cash.

3. Closing

3.1 Closing Date. Closing shall occur on or before _____, or such other date agreed to in writing by the parties (the "Closing").

3.2 Closing Documents. At Closing, Seller shall deliver a General Warranty Deed conveying marketable, insurable, fee-simple title, subject only to permitted encumbrances listed in *Exhibit B*.

3.3 Prorations & Closing Costs. Real estate taxes, rents, and utilities shall be prorated as of the Closing Date. Closing costs shall be paid by _____.

4. Due Diligence & Inspections

4.1 Buyer shall have **14 days** from the Effective Date (the "Inspection Period") to conduct any inspections, surveys, or feasibility studies (collectively, "Inspections"). Buyer may access the Property upon reasonable notice to Seller.

4.2 If Buyer is not satisfied with the results of its Inspections, Buyer may terminate this Agreement before expiration of the Inspection Period by written notice to Seller, in which case the Earnest Money shall be refunded to Buyer and neither party shall have further obligation.

5. Representations & Warranties

Seller represents and warrants to Buyer that, as of Closing:

- Seller is the lawful owner of the Property with full authority to convey title.
- There are no outstanding leases, liens, assessments, or litigation affecting the Property except as disclosed in writing.
- No person other than Buyer has a valid option, contract, or right to purchase the Property.

6. Default

6.1 Seller Default. If Seller fails to perform, Buyer may elect to terminate this Agreement and receive a full refund of the Earnest Money.

6.2 Buyer Default. If Buyer fails to perform, Seller may retain the Earnest Money as liquidated damages, the parties acknowledging that actual damages are difficult to ascertain.

7. Assignment

8. Notices

All notices must be in writing and deemed given when (i) delivered personally, (ii) sent by nationally-recognized overnight courier, or (iii) emailed with confirmation, to the addresses set forth above or such other address a party designates in writing.

9. Governing Law & Venue

This Agreement shall be governed by and construed under the laws of the State of _____ . Venue for any action arising hereunder shall lie exclusively in _____ , _____ .

10. Miscellaneous

10.1 Entire Agreement. This Agreement (with attached exhibits) constitutes the entire agreement of the parties and supersedes all prior discussions.

10.2 Amendments. No amendment or waiver is effective unless in writing signed by both parties.

10.3 Counterparts & Electronic Signatures. This Agreement may be executed in counterparts and delivered electronically; all counterparts together constitute one instrument.

11. Additional Terms

IN WITNESS WHEREOF, the parties have executed this Agreement as of the Effective Date.

SELLER:

Signature: _____

Name: _____

Date: _____

BUYER:

Signature: _____

Name: _____

Date: _____